SKEMA GLOBAL BBA SYLLABUS

MULTI-CAMPUS ACADEMIC YEAR: 2026/2027			
COURSE CODE *Enter Course Code*		**Course Name: BUSINESS LAW**	
Credits	US Credits 3 / ECTS Credits 6		
Student Workload	Contact Hours	Personal and/or Teamwork	Evaluation
	30	120	6
Teaching Language	English		
Co/Prerequisite			
Discipline			
Lecturer			
Course Manager	Devin SMITH – devin.smith@skema.edu		
Course Description	Business is increasingly cross-border, and so are its legal problems: a single company answers to several legal systems at once, and its hardest decisions are rarely settled by looking up one rule. This course equips Year-2 students to reason about law in that reality. It runs as a continuous board-of-directors simulation — each group governs one fictional cross-border company for the whole term, meeting one shared legal problem each week through that company's eyes — and moves from the foundations of law and the two great legal traditions, through the substantive and operational law businesses meet most often (product liability, IP, contracts, data, labour, competition), to a capstone synthesis on business crime, compliance, and entity choice. Its primary objective is critical thinking; its secondary objective is storytelling. AI is integrated every week in a declared, changing role — always paired with the student's own written judgement — and is prohibited at the final capstone.		
Learning Outcomes	***Knowledge and Understanding (subject specific) – The student is expected to:*** • identify the sources of law and distinguish the civil-law and common-law traditions, including their practical consequences for business; • explain the core substantive frameworks a cross-border firm meets: product liability, intellectual property (foundations and frontiers), contracts and the CISG, data and privacy, labour, and competition; • describe corporate criminal liability (the 'failure to prevent' model), compliance, and how entity choice and group structure allocate risk; • recognise why the same conduct is treated differently across jurisdictions, and how far a state's law can reach beyond its borders. ***Cognitive / Intellectual Skills (generic) – The student is expected to:*** • analyse a genuinely contested legal-business problem from multiple perspectives and reach a defensible position; • evaluate competing arguments honestly, including constructing the strongest case for a view they reject; • synthesise several legal frameworks at once on a single realistic scenario; • exercise critical judgement over AI output — interrogate, verify, and disagree with reasons. ***Key Transferable Skills (generic) – The student is expected to:*** • communicate persuasively, orally and in writing, and carry an audience to a decision (storytelling); • collaborate effectively within a sustained team — the term-long board of directors;		

	• use AI tools responsibly within a defined role while retaining independent judgement; • manage preparation and deadlines across a continuous-assessment rhythm. ***Practical Skills (subject specific) – The student is expected to:*** • spot legal risk in cross-border business decisions and recognise when to escalate to counsel; • apply the correct framework to a fact pattern — which law governs, and which regulators can reach the company; • draft and defend a reasoned board decision under time pressure; • structure a compliance-aware response to a corporate crisis, integrating the term's frameworks.	
Course included in AACSB Assurance of Learning	LO3.1: To produce clear, well organized verbal presentations LO3.2: To produce clear, well organized written	
Transferable Competences	☒ Sustainability ☒ Ethics ☒ Artificial Intelligence ☒ Technological Agility ☒ Communication ☐ Research Methods ☐ Other	
Teaching Methods	☒ Lectures ☒ Blended Learning ☒ Guided Personal Work ☒ Autonomous Personal Work ☒ Case Study ☒ Project ☐ Seminar ☒ Other *(continuous board-of-directors simulation, AI-integrated)*	
	Written Examination Final examination — cumulative multiple-choice across all ten weeks (proctored, AI-off; per the academic calendar)	**Coefficient %** 26%
	Continuous Assessment: Weekly K2 quizzes (Weeks 2–9; best 6 of 8; proctored, AI-off) In-class group case studies (best 6 of 8; specs rubric) Final group presentation (Week 10 capstone; AI prohibited) Class participation (Block B engagement + weekly handwritten 'Ask AI, then disagree' paragraph)	**Coefficient %** 24% 30% 15% 5%
Grading System	Please refer to the Academic Regulations for the grading system used in the BBA Program and further details and for information concerning absences, participation in class, plagiarism, etc.	
Absence Policy	Students are expected to attend all classes. The three-absence policy is provided to accomodate medical or other immediate issues. Not to be used as "available absences" Please reference the notes below Course Content regarding the coefficient transfer policy for this course. Students are expected to complete and submit all assessment by the announced date and time.	
References / Books	Required for the course: none — all required materials (weekly case packages, group briefs, and pre-class decks) are provided via the course platform.	Recommended references: Mann & Roberts, Business Law and the Regulation of

		Business (13th ed., Cengage) — supporting reference only.
Online reference material	Required for the course: weekly K2 pre-class materials (readings and media on the course platform) — the basis of the following session's quiz.	Recommended references: Cengage/MindTap online platform; official regulator and court websites for the fast-moving weeks.

COURSE CONTENT

Sessions:	Date:	Contents:
Session 1		**Is It Legal — or Is It Right? (Sources of Law, Legal Systems & Morality · anchor: Martin Luther King)** **Topics:** where law comes from (sources); why legal systems disagree; the moral/legal distinction. **Assessment / activity:** Ungraded diagnostic case (Northwind Industries) through six perspectives · course orientation: boards formed, the ten companies assigned, the AI model and the weekly 'Ask AI, then disagree' paragraph introduced. No quiz. **Objective:** *Leave able to separate 'is it lawful?' from 'is it right?' — and ready for the term's working rhythm.*
Session 2		**Civil Law & Common Law (anchor: Portalis)** **Topics:** the two great legal traditions; codes vs precedent; good faith in negotiation; what the difference means for a business. **Assessment / activity:** Quiz 1 (on Session 1 pre-class) · graded group case begins: Pomme S.A.S. — the collapsed cross-border deal · AI role: research assistant. **Objective:** *Reason inside both traditions and predict how each would treat the same broken negotiation.*
Session 3		**Product Liability (anchor: Justice Traynor)** **Topics:** negligence vs strict liability; the three defect types; how far liability reaches across borders. **Assessment / activity:** Quiz 2 · graded group case: Élan Mobility (defective product across systems) · CONTINUOUS-ASSESSMENT WEEK (heavier weighting) · AI role: opponent. **Objective:** *Choose and defend the right liability theory for a defective-product scenario.*
Session 4		**Intellectual Property I — Foundations & Territoriality (anchor: Victor Hugo)** **Topics:** what IP protects (patent, trademark, copyright, design); why rights are national; cross-border infringement. **Assessment / activity:** Quiz 3 · graded group case: Solène Studio (a design copied abroad) · AI role: historian. **Objective:** *Explain why an IP right stops at the border — and what a cross-border firm must do about it.*
Session 5		**Intellectual Property II — Frontiers: AI & Geographical Indications (anchor: Stephen Thaler)** **Topics:** AI inventorship and machine-made works; geographical indications; where current doctrine runs out.

Sessions:	Date:	Contents:
		Assessment / activity: Quiz 4 · graded group case: Atelier Muse · CONTINUOUS-ASSESSMENT WEEK · AI role: devil's advocate. (Fast-moving law — refreshed before teaching.) **Objective:** *Argue both sides of a question the law has not yet settled — and land a board position anyway.*
Session 6		**Cross-Border Contracts & the CISG (anchor: Ernst Rabel)** **Topics:** formation and terms across borders; governing law; when the CISG applies; breach and remedies. **Assessment / activity:** Quiz 5 · graded group case: Bonnet Textiles v. Cedar & Pine (a cross-border sale gone wrong) · AI role: regulatory analyst. **Objective:** *Determine which law governs a cross-border sale and what remedies follow.*
Session 7		**Data, Privacy & Digital Regulation (anchor: Max Schrems)** **Topics:** data-protection duties; cross-border data transfers; consent; extraterritorial reach of privacy law. **Assessment / activity:** Quiz 6 · graded group case: Lumen Health (patient data across borders) · CONTINUOUS-ASSESSMENT WEEK · AI role: regulatory analyst. (Fast-moving law.) **Objective:** *Map which privacy regimes reach the company and structure a compliant transfer.*
Session 8		**Labour & Employment (anchor: Yaseen Aslam)** **Topics:** employee vs contractor vs worker; platform work; why classification matters (rights, cost, liability). **Assessment / activity:** Quiz 7 · graded group case: Veloz and Mara (the platform's drivers) · AI role: opponent. (Fast-moving law.) **Objective:** *Classify a working relationship correctly and explain the business consequences of getting it wrong.*
Session 9		**Competition Law (anchor: Khan vs Bork)** **Topics:** cartels, abuse of dominance, merger control; the effects doctrine; the two rival philosophies of antitrust. **Assessment / activity:** Quiz 8 (final quiz) · graded group case: Orbit and Kestrel (a cross-border merger) · CONTINUOUS-ASSESSMENT WEEK · AI role: integration tool. (Fast-moving law.) **Objective:** *Identify the competition problem in a deal and say which regulators can act — and why the answer is contested.*
Session 10		**Business Crime, Compliance & Entity Choice — THE CAPSTONE (anchors: Watkins vs Friedman)** **Topics:** corporate criminal liability ('failure to prevent'); compliance and whistleblowing; entity choice and the corporate veil; the whole term converging. **Assessment / activity:** FINAL GROUP PRESENTATION (15%) on the Meridian Group crisis — replaces the group case; every member speaks; graded live on the specs rubric · AI PROHIBITED for the entire session · No quiz. **Objective:** *Synthesise the term's frameworks on one company in crisis and own a defensible judgement — without AI.*
Midterm Exam		
Final Exam		

Sessions:	Date:	Contents:
Continuous Assessment: **Weekly quizzes**: 28% (eight quizzes, Weeks 2–9). If one quiz is missed, there is a 50% coefficient of quiz average. A second missed quiz = 25% coefficient (not including first coefficient). Any additional missed quizzes will be zero's in the grade sheet. **In-class group cases**: 45% (six graded cases, Weeks 1–6). One missed case = 50% coefficient of case average. Second missed case = 25% of case average. Any additional missed cases will be a zero in the grade sheet. **Master Project**: 27% (groups of three; due Week 10). All faculty reserves the right to adjust individual group members grades based on group participation and contribution. Providing AI-generated content to the group will not be considered group participation. **Assignments:** individual weekly fact-finding logs (Weeks 1–6), a group written report, and a group video documentary. **Plagiarism:** All work submitted must be your own. Plagiarism, a breach of academic regulations, will not be tolerated and will be sanctioned. This applies to the use of AI. Familiarise yourself with the SKEMA Cheating Policy. This syllabus is subject to change.		

COMPETENCY BASED APPROACH

Competency	Learning objective(s): by the end of this course students should be able to…	Assessment	Marking criteria
Use digital tools	use AI critically within a declared weekly role (research assistant → opponent → regulator → integration tool), interrogating and improving its output rather than accepting it; work fluently on the course's digital platforms.	Weekly handwritten 'Ask AI, then disagree' paragraph (within participation, 5%); AI-integrated in-class cases (30%).	Quality of the reasoned disagreement with AI; appropriate, declared use of the tool in the case deliverable (specs rubric; participation descriptors).
Use data for analysis purposes	extract the legally relevant facts from a business scenario, use them to select and apply the governing framework, and assess the company's exposure across jurisdictions.	In-class group case deliverables (30%); scenario-based MCQ items in the weekly quizzes (24%) and the final examination (26%).	Accuracy of issue-spotting and correctness of framework application to the facts (specs rubric; examination key).
Communicate in writing	produce clear, well-structured written board decisions and concise reasoned arguments (AACSB LO3.2).	Written case deliverables (30%); the weekly handwritten paragraph (within participation, 5%).	Clarity, structure, and quality of reasoning (specs rubric criteria; participation descriptors).
Positioning within a professional field	act as a board member of a cross-border company — adopt the perspective, vocabulary, and duties of corporate decision-makers, and	Term-long board simulation; live defences each week; the final group presentation (15%).	Professional register; role-appropriate judgement; handling of live questions (specs

Competency	Learning objective(s): by the end of this course students should be able to…	Assessment	Marking criteria
	recognise when to seek professional counsel (AACSB LO3.1).		rubric — delivery criterion).
Act responsibly within a business organization	distinguish what the law permits from what is right; weigh stakeholder impacts; reason about compliance, whistleblowing, and corporate responsibility (the Friedman/Watkins question).	Week 1 diagnostic (formative); ethical dimensions of the weekly cases; the capstone's judgement dimension (within the 15% presentation).	Honest weighing of both the legal and the ethical lens; a landed, defended position on what the firm owes beyond the law (capstone rubric).
Understand the business world	explain how law shapes cross-border business — entity choice, contracts, data, labour, competition, and crime — and why the same conduct is treated differently across legal systems.	Cumulative final examination (26%); weekly K2 quizzes (24%).	Performance against the examination blueprint spanning all ten weeks (a mix of recall, understanding, and application items).

ECOLOGICAL TRANSITION

The ecological transition enters this course through the law that increasingly enforces it — and through the ethical reasoning the transition demands of managers. The course's opening distinction, that what is lawful and what is right are different questions, is introduced in Session 1 through a diagnostic case in which a company profits from a practice that is legal where it operates but banned elsewhere as harmful; students argue the decision from six perspectives, including those of the affected stakeholders and of the long-term institution, which is precisely the reasoning the ecological transition requires of business leaders.

Substantively, environmental stakes recur across the term's weekly board work. The product-liability week (Session 3) examines responsibility for products that harm users and their environment, and the regulatory rationale for strict liability. Several of the ten fictional companies that students govern all term place ecological questions at the centre of their deliberations — among them a Japanese energy company, a Brazilian logistics firm, and a Gulf agri-technology business — so environmental exposure, sustainability-driven regulation, and green reputational stakes surface naturally in the cases rather than as a bolted-on module.

The term then closes on the question beneath the transition itself. The Session 10 capstone stages the shareholder-primacy versus stakeholder debate (Friedman against the insider-conscience pole) on a company in crisis, and every board must take and defend a position on what a firm owes beyond the legal minimum — to the people and environments it affects. Students therefore leave the course equipped to reason about ecological responsibility exactly where it is hardest: where the law permits conduct that judgement says should stop.